

**Court No. - 39**

**Case :-** WRIT - C No. - 34633 of 2018

**Petitioner :-** Ashok Kumar

**Respondent :-** State Of U.P. And 4 Others

**Counsel for Petitioner :-** Vikas Mishra

**Counsel for Respondent :-** C.S.C.,Pranjal Mehrotra

**Hon'ble B. Amit Sthalekar,J.**

**Hon'ble Surya Prakash Kesarwani,J.**

Heard Sri Vikas Mishra, learned counsel for the petitioner, learned Standing Counsel for respondent Nos.1, 2 and 3 and Sri Pranjal Mehrotra, learned counsel for respondent No.4.

With the consent of learned counsel for the parties, this writ petition is being finally heard without calling for counter affidavit.

Submission of learned counsel for the petitioner is that recovery under the impugned recovery citation dated 10.08.2018 is being made from the petitioner although the dues relate to one Sri Badlu, son of Natthu from whom the petitioner had purchased a land in the year 2002.

Sri Pranjal Mehrotra, learned counsel for respondent No.4 submits that if the petitioner has any objection against the demand being recovered from him then he may file an objection under para 6.5 (b) of the U.P. Electricity Supply Code, 2005 before the respondent No.4, who is under legal obligation to decide it within time bound period by a speaking and reasoned order.

In view of the stand taken by learned counsel for the respondent No.4, this writ petition is disposed of giving liberty to the petitioner to submit his objection within four weeks before respondent No.4 along with a certified copy of this order and in the event such an objection is submitted within the stipulated period, the respondent No.4 shall decide it by a speaking and reasoned order within a further period of four weeks.

With the aforesaid direction, the writ petition is **disposed of**.

It is made clear that we have not expressed any opinion on merits of the claim of the petitioner.

**Order Date :-** 11.10.2018

Nitin Verma